POS SOFTWARE SUBSCRIPTION AGREEMENT

This POS Software Subscription Agreement (the "**Agreement**") is made on 6 August 2026 (the "**Effective Date**").

PARTIES

(1) **KEDAI PINTAR SYSTEMS PTE. LTD.** (UEN SAMPLE-SG-0801), a company incorporated in Singapore with its registered office at 14 Sample Business Park Road, #05-12, Singapore 000801 (the "**Vendor**"); and

(2) **WARUNG SELERA BAYU SDN. BHD.** (Company No. SAMPLE-MY-0802), a company incorporated in Malaysia with its registered office at No. 21, Jalan Contoh 5/3, Taman Contoh, 81100 Johor Bahru, Johor, Malaysia (the "**Customer**").

BACKGROUND

(A) The Vendor provides a cloud-based point-of-sale ("**POS**") system for restaurants and retailers, accessed through a web browser and a tablet application.

(B) The Customer operates five (5) restaurants and kiosks in Johor Bahru and wishes to subscribe to the POS system for all of its outlets.

1. DEFINITIONS

1.1 In this Agreement:

"**Service**" means the hosted POS system, the tablet application, the back-office dashboard and the standard support described in Schedule 1.

"**Subscription Fees**" means the monthly fees for the Service set out in Schedule 2, calculated per outlet and per terminal.

"**Customer Data**" means the sales records, menu data, inventory data, staff records and customer information that the Customer or its staff enter into the Service.

"**Initial Term**" means the period of twelve (12) months starting on the Effective Date.

1.2 References to days are to calendar days. References to a month are to a calendar month.

2. THE SERVICE

2.1 The Vendor grants the Customer a non-exclusive, non-transferable right to use the Service at its outlets during the term of this Agreement for its own internal business purposes.

2.2 The Vendor shall make the Service available with reasonable skill and care and shall use reasonable efforts to keep it available at all times, except for planned maintenance announced at least two (2) days in advance and outside the Customer's usual trading hours where practicable.

2.3 The Vendor shall provide telephone and email support from 9.00 a.m. to 9.00 p.m. every day, with a target first response time of four (4) hours for urgent faults.

2.4 The Customer shall keep its login details secure, shall ensure that its staff use the Service in accordance with this Agreement, and is responsible for the accuracy of the menu and price data it enters.

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3. FEES AND PAYMENT

3.1 The Subscription Fees are invoiced monthly in advance. The Customer shall pay each invoice within fourteen (14) days of the invoice date.

3.2 Subscription Fees are exclusive of sales and service tax and any other applicable taxes, which the Customer shall pay in addition.

3.3 The Vendor may change the Subscription Fees at any time by giving the Customer fourteen (14) days' notice by email to the Customer's registered email address. The new Subscription Fees apply from the end of the notice period. There is no limit on the size or frequency of any change.

3.4 If the Customer does not pay an invoice by its due date, interest accrues on the overdue amount at the rate of two per cent (2%) a month until payment in full.

4. SUSPENSION

4.1 The Vendor may suspend the Customer's access to the Service immediately and without notice if the Customer is late in paying any amount due under this Agreement, even if the amount is small or is the subject of a good faith dispute.

4.2 The Vendor is not liable for any loss of sales or other loss suffered by the Customer during a suspension. The Subscription Fees remain payable during a suspension.

4.3 The Vendor shall restore access within one (1) day after receiving payment of all overdue amounts and interest.

5. CUSTOMER DATA

5.1 As between the parties, the Customer owns the Customer Data. The Customer grants the Vendor a licence to host, copy and process the Customer Data only to provide the Service and to produce anonymised statistics that do not identify the Customer or any individual.

5.2 The Vendor shall keep daily backups of the Customer Data for thirty (30) days and shall protect the Customer Data with reasonable technical and organisational security measures.

5.3 Following termination of this Agreement, the Vendor shall make the Customer Data available for export for thirty (30) days. Export is available only in the Vendor's proprietary file format, and the Vendor may charge its then-current data migration fee for each export. After that period the Vendor may delete the Customer Data without further notice.

5.4 The Vendor shall notify the Customer without undue delay if it becomes aware of a security breach affecting the Customer Data. The parties shall each comply with the Personal Data Protection Act 2010 of Malaysia and, where applicable, the Personal Data Protection Act 2012 of Singapore.

6. INTELLECTUAL PROPERTY

6.1 The Vendor and its licensors own all intellectual property rights in the Service. Nothing in this Agreement transfers those rights to the Customer.

6.2 The Customer shall not copy, modify, reverse engineer or resell the Service.

6.3 The Customer keeps all rights in its trade marks, logos, menus and photographs, and grants

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the Vendor a licence to display them within the Service for the Customer's use.

7. WARRANTIES

7.1 Each party warrants that it has the authority to enter into this Agreement.

7.2 The Vendor warrants that it will provide the Service with reasonable skill and care and that the Service will substantially conform to its documentation. The Vendor does not warrant that the Service will be uninterrupted or error-free.

8. LIMITATION OF LIABILITY

8.1 The Vendor shall not be liable for any loss of profits, revenue, business or goodwill, or for any indirect or consequential loss, however arising.

8.2 The Vendor's total aggregate liability arising out of or in connection with this Agreement, whether in contract, tort (including negligence) or otherwise, shall not exceed the Subscription Fees paid by the Customer in the three (3) months immediately preceding the event giving rise to the claim.

8.3 The limits in Clauses 8.1 and 8.2 apply to the Vendor only. The Customer's liability to the Vendor under this Agreement is not limited.

8.4 Nothing in this Agreement limits liability for fraud or for death or personal injury caused by negligence.

9. CONFIDENTIALITY

9.1 Each party shall keep the other's confidential information confidential and use it only for this Agreement, except for information that is public, already known to the recipient, lawfully received from a third party or required by law to be disclosed. This obligation continues for three (3) years after termination.

10. TERM AND TERMINATION

10.1 This Agreement starts on the Effective Date and continues for the Initial Term, and then continues month to month until either party ends it by giving thirty (30) days' written notice.

10.2 Either party may terminate this Agreement immediately by written notice if the other party commits a material breach that is not remedied within thirty (30) days of written notice, or becomes insolvent.

10.3 On termination the Customer shall pay all Subscription Fees due up to the effective date of termination.

11. GOVERNING LAW AND DISPUTES

11.1 This Agreement is governed by the laws of Malaysia.

11.2 The parties shall first try to resolve any dispute by discussion between senior management. If the dispute is not resolved within thirty (30) days, the courts of Malaysia have jurisdiction.

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12. GENERAL

12.1 Neither party may assign this Agreement without the other's prior written consent, except that the Vendor may assign it to a member of its group on notice to the Customer.

12.2 This Agreement and its Schedules are the entire agreement between the parties. Any variation (other than a change of fees under Clause 3.3) must be in writing and signed by both parties.

12.3 Notices shall be sent by email or courier to the addresses stated above.

SIGNATURES

Signed for and on behalf of **KEDAI PINTAR SYSTEMS PTE. LTD.**

Signature: _____

Name: _____ Designation: Director

Date: _____

Signed for and on behalf of **WARUNG SELERA BAYU SDN. BHD.**

Signature: _____

Name: _____ Designation: Director

Date: _____

Schedule 1 (Service Description) and Schedule 2 (Subscription Fees) are attached separately.

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